

4	Gill vs. FCA US LLC 2025-01492739	Demurrer to Amended Complaint / Case Management Conference Continued to 8/17/26
5	Park vs. General Motors LLC 2023-01364797	Motion for Attorney Fees Plaintiffs Peter Park and Safety Zone Enterprises, LLC's ("Plaintiffs") Motion for Attorney's Fees, Costs, and Expenses is granted. Plaintiff is awarded \$22,261, in reasonable attorneys' fees, and \$1,117.43, in costs and expenses, against Defendant General Motors, LLC ("Defendant"). <u>Procedural Issues</u> Defendant contends this motion is untimely. (Opp'n at pp. 3-4, citing <i>Hatlevig v. General Motors LLC</i> (2026) 118 Cal.App.5th 644.) The Court finds <i>Hatlevig</i> is distinguishable in critical respect; and, that Plaintiffs' deadline to file the fee motion had not been triggered by the filing of notice of (conditional) settlement. <u>Merits</u> Civil Code section 1794(d) provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Further, Plaintiff's right to seek an award of attorneys' fees is a term of the CCP section 998 offer, here. To determine reasonable attorney's fees, the court should consider the nature of the litigation, its difficulty, the amount involved, the skill required and employed in handling the matter, the attention given, the success of the attorney's efforts, the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (<i>Church of Scientology v. Wollersheim</i> (1996) 42 Cal.App.4th 628, 659.) As to the reasonableness of the hours, "trial courts must carefully review attorney documentation of hours expended; 'padding' in the form of inefficient or duplicative efforts is not subject to compensation." (<i>Ketchum v. Moses, supra</i>, 24 Cal.4th at p. 1132.) "In determining a fee's reasonableness, the court may also consider whether the motion itself is reasonable, both in terms of (1) the amount of fees requested